

26STCV15332 26STCV15332

County: los-angeles

Division: Civil Law and Motion

Department: 408

Hearing date: 2026-08-20

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C408%2C08%2F20%2F2026

Source SHA-256: 9f3ec38916aa3496d0240a257e076340beb3f30148decd0433c94edd72afe0a3

Case Number: 26STCV15332 Hearing Date: August 20, 2026 Dept: 408

Defendant Dunn Law APC's Demurrer to Plaintiff Carpenter & Zuckerman's Complaint is OVERRULED.

I.

BACKGROUND

On May 13, 2026, Plaintiff Carpenter & Zuckerman ("Plaintiff") filed a complaint in interpleader against Defendants Brian T. Dunn ("Dunn"), Dunn Law APC ("Dunn Law"), the Cochran Firm California ("Cochran Firm"), and Ibiere Seck ("Seck", collectively "Defendants").

On June 1, 2026, the court found cases 19STCV40383 and 26STCV15332 related, assigning 19STCV40383 as the lead case.

On

June 17, 2026, Seck filed an answer to Plaintiff's complaint.

On

June 30, 2026, Dunn Law ("Moving Defendant") filed this Demurrer to Plaintiff's complaint. On July 27, 2026, Plaintiff filed an opposition. As of August 18, 2026, no reply has been filed.

II.

LEGAL STANDARD

"The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of" various grounds

listed in statute. (Code Civ. Proc., § 430.10.)

When

considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on

the face of the pleading or via proper judicial notice. (Donabedian v.

Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests

the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc.

v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such,

the court assumes the truth of the complaint's properly pled or implied factual

allegations. (Ibid.) The only issue a demurrer is concerned with is

whether the complaint, as it stands, states a cause of action. (Hahn v.

Mirida (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave

to amend must be allowed where there is a reasonable possibility of successful

amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is

on the plaintiff to show the court that a pleading can be amended successfully.

(Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.)

However, "[i]f there is any reasonable possibility that the plaintiff can state

a good cause of action, it is error to sustain a demurrer without leave to

amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

III.

DISCUSSION

Moving Defendant demurs to Plaintiff's

complaint in interpleader pursuant to Code of Civil Procedure section 430.10,

subdivision (e), on the grounds that Plaintiff fail to state sufficient facts

to constitute a cause of action.

1.

Request for Judicial

Notice

Moving Defendant and Plaintiff's Requests for

Judicial Notice are granted. "A court may properly take judicial notice of its

own records. (Evid. Code, § 452, subd. (e).)" (Garcia v. Sterling (1985)

176 Cal.App.3d 17, 21.) However, the court does not grant judicial notice of

factual findings in the above documents. Factual findings in prior judicial

orders, opinions, or decisions are not a proper subject of judicial notice. (Kilroy v. State of Calif. (2004) 119 Cal.App.4th 140, 148.) But the finding itself may be a proper subject of judicial notice if it has a res judicata or collateral estoppel effect in a subsequent action. (Ibid.)

2.

Merits

Moving Defendant argues that Plaintiff fails to demonstrate a reasonable probability of double vexation to support its complaint in interpleader. (Demurrer, at p. 6.)

“Any

person, firm, corporation, association or other entity against whom double or multiple claims are made, or may be made, by two or more persons which are such that they may give rise to double or multiple liability, may bring an action against the claimants to compel them to interplead and litigate their several claims.” (Code Civ. Proc., § 386, subd. (b).) “Once the person admits liability and deposits the money with the court, he or she is discharged from liability and freed from the obligation of participating in the litigation between the claimants. [Citations.] The purpose of interpleader is to prevent a multiplicity of suits and double vexation. [Citation.]” (City of Morgan Hill v. Brown (1999) 71 Cal.App.4th 1114, 1122.)

The

complaint in interpleader alleges that Plaintiff is in possession of funds in the amount of \$217,693.88 arising from the settlement of an underlying personal injury action titled Adrian Martinez v. County of Los Angeles, et al., LASC Case No. 23SMCV0407 (“Underlying Action”). (Complaint, ¶ 2.) Plaintiff alleges that Defendants have made conflicting claims to the same funds. (Id., ¶ 3.) The complaint explains that Dunn at the Cochran Firm referred the Underlying Action to Plaintiff where they executed a Consent to Division of Attorneys’ Fees agreement providing a 50/50 attorneys’ fees division with Plaintiff receiving half of attorneys’ fees earned and the Cochran Firm receiving the other half. (Id., ¶¶ 15-16.) On October 17, 2024, the Underlying Action settled for \$4,000,000.00 in favor of the parties’ client which required final approval by the Los Angeles County Board of Supervisors. (Id., ¶ 17.) In January 2026, the settlement was approved by the Board of Supervisors and the attorneys’ fees were calculated at 40%. (Ibid.)

On

February 4, 2026, Plaintiff received a Notice of Lien filed over the judgment entered in the Underlying Action identifying Seck as the judgment creditor and Dunn, the Cochran Firm, and Dunn Law as the judgment debtor. (Id., ¶¶ 18-19.) The Notice of Lien states that to satisfy the amount to be secured by attachment at the time of the notice is \$190,231.96. (Id., ¶ 19.) On March 3, 2026, the Cochran Firm filed an Ex Parte Application for Order Quashing, Removing, and/or Expunging Lien as to the lien filed by Seck. (Id., ¶ 22.) On March 5, 2026, the court in the Underlying Action heard the Ex Parte Application and ruled that “[t]he lien as it pertains to [the Underlying Action] is released. Carpenter & Zuckerman’s counsel will hold secure any portion of payment relating to fees pending order of the court or agreement of the parties. Defendant County of Los Angeles need not include the lien holder as a payee on the funds.” (Ibid.) On March 25, 2026, the Cochran Firm filed a Motion for Order Releasing Funds Set Aside Due to Illegal and Invalid Lien. (Id., ¶ 23.) On May 12, 2026, the court in the Underlying Action granted the Cochran Firm’s Motion for Order Releasing Funds Set Aside Due to Illegal and Invalid Lien stating that “THIS ORDER ONLY APPLIES TO FORMAL LIENS PURSUANT TO THE ABOVE STATUTE [C.C.P. SECTION 708.410]. IT HAS NO APPLICATION TO ANY OTHER FORMAL LIEN FILED BY OPPOSING PARTY.” (Id., ¶ 28 [emphasis in original].) Plaintiff alleges that it did not release the disputed funds following the court’s ruling based on a Notice of Judgment of Lien filed by Seck with the California Secretary of State on July 3, 2025, served on Plaintiff. (Id., ¶¶ 30-31.)

Moving

Defendant contends that Plaintiff cannot show any cognizable threat of liability resulting from the release of the disputed funds because there is a court order to release the funds to Dunn. (Demurrer, at p. 6, RJN, Exhs. 2-3.)

In

opposition, Plaintiff argues that the existence of a Judgment Lien filed by Seck with the California Secretary of State creates a risk of liability because if Dunn receives the disputed funds, Seck can go after Plaintiff for failing to honor the filed Judgment Lien whereas If Seck receives the funds, Dunn could go after Plaintiff for allegedly violating the court order it relies upon. (Opp., at p. 2.)

The

court finds that Plaintiff sufficiently alleges the complaint in interpleader demonstrating a risk of double vexation over the disputed funds. The complaint alleges that the order to release the funds in the Underlying Action does not consider the Judgment Lien filed by Seck on July 3, 2025, thereby creating a risk of double or multiple liability if Plaintiff is required to determine the proper recipient of the funds without court intervention. (Complaint, ¶¶ 30-31, 45.)

Moving

Defendant also argues that the complaint in interpleader is also barred by the doctrine of res judicata and collateral estoppel as the court in the Underlying Action already ruled that the disputed funds must be released to Dunn. (Demurrer, at pp. 7-8.) The court disagrees. The crux of this action is that the court ruling did not consider the Judgment Lien filed by Seck on July 3, 2025. Accordingly, there is no issue or claim previously argued or decided in prior proceedings for res judicata and collateral estoppel to apply.

Accordingly,
the demurrer is overruled.

IV.

CONCLUSION

Defendant Dunn Law APC's Demurrer to Plaintiff Carpenter & Zuckerman's Complaint is OVERRULED.